

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1394

By: Provenzano

AS INTRODUCED

An Act relating to teacher certification; amending 70 O.S. 2021, Section 6-187, as last amended by Section 164, Chapter 452, O.S.L. 2024 (70 O.S. Supp. 2024, Section 6-187), which relates to competency examinations; exempting certain candidates from competency examination; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 6-187, as last amended by Section 164, Chapter 452, O.S.L. 2024 (70 O.S. Supp. 2024, Section 6-187), is amended to read as follows:

Section 6-187. A. Prior to July 1, 2014, a competency examination shall be adopted by the Oklahoma Commission for Teacher Preparation and beginning July 1, 2014, a competency examination shall be adopted by the Commission for Educational Quality and Accountability for the professional education and various subject areas and grade levels for purposes of ensuring academic achievement and competency of

1 each teacher candidate or teacher in the subject area the
2 person is seeking certification to teach which shall also
3 include certification as an administrator, as prescribed by
4 the State Board of Education.

5 The Commission, consistent with the purposes of this section,
6 shall promulgate rules and procedures to guarantee the
7 confidentiality of examinations.

8 B. No teacher candidate shall be eligible for certification
9 until successfully completing the competency examination except
10 those candidates who make application to the State Board and meet
11 the criteria for the alternative placement program pursuant to
12 Section 6-122.3 of this title or who have successfully completed and
13 graduated from an institution of higher education approved by the
14 State Board of Education for teacher training and have had two (2)
15 years of effective evaluations at the same school district in
16 accordance with Section 6-101.10 of this title. Certification shall
17 be limited to areas of approval in which the certified teacher has
18 successfully completed the examination. Subject to the provisions
19 of subsection C of this section, testing for certification for
20 subjects in which a teacher candidate or teacher is seeking a minor
21 teaching assignment or an endorsement to teach shall be limited to
22 the specific subject area test.

1 A teacher candidate or teacher may take the professional
2 education or subject area portions of the examination subject to any
3 limit imposed by the Commission.

4 C. 1. Except as otherwise provided for in this subsection, a
5 teacher may be certified in as many areas as the teacher meets the
6 necessary requirements provided by law and has successfully
7 completed the subject area portion of the examination.

8 2. Except as otherwise provided for in this paragraph,
9 certification in early childhood, elementary, or special education
10 shall require completion of an appropriate teacher education program
11 approved by the Commission.

12 Any teacher who is certified to teach elementary education may
13 be certified in early childhood education upon meeting the
14 requirements provided in law and successful completion of the
15 appropriate subject area portion of the examination. Any teacher
16 who is certified to teach early childhood education may be certified
17 in elementary education upon meeting the requirements provided in
18 law and successful completion of the appropriate subject area
19 portion of the examination. Any special education teacher who
20 becomes certified to teach through completion of an accredited
21 teacher preparation program may be certified in early childhood or
22 elementary education upon meeting the requirements provided in law
23 and successful completion of the appropriate subject portion of the
24 examination. Any teacher who becomes certified to teach through

1 completion of an accredited teacher preparation program or becomes
2 alternatively certified to teach through the Troops to Teachers
3 program may be certified in special education upon meeting the
4 requirements provided in law and successful completion of the
5 appropriate subject area portion of the examination. Any special
6 education teacher who has not completed a Commission-approved
7 teacher education program in elementary education or early childhood
8 education but who has successfully completed the subject area
9 portion of the examination may be certified in elementary education
10 or early childhood education for the purpose of providing direct
11 instruction and serving as the teacher of record for grading
12 purposes in special education settings only.

13 D. The Commission shall offer the competency examination at
14 least four times per calendar year on dates to be established by the
15 Commission.

16 E. If a teacher candidate or teacher is a non-native-English
17 speaker, the Commission shall offer the subject area competency
18 examination in the native language of the teacher candidate or
19 teacher only if the teacher candidate or teacher is employed or has
20 been offered employment by a school district as a teacher in a
21 foreign language immersion program offered by the school district.
22 If a non-native-English speaker who has received certification in a
23 subject area after taking the subject area competency examination in
24 the native language of the speaker seeks to add a certification area

1 in the future and that person is no longer employed as a teacher in
2 a foreign language immersion program, the examination for the
3 additional certification area shall be taken in English. The State
4 Board of Education shall issue a restricted license or certificate
5 to any teacher who has completed a subject area competency
6 examination in the native language of the teacher as provided for in
7 this subsection restricting the teacher to teaching only in a
8 foreign language immersion program.

9 F. The State Board of Education, in consultation with the
10 Commission for Educational Quality and Accountability, may grant an
11 exception to the requirement to complete a subject area examination
12 for initial certification in a field which does not require an
13 advanced degree if the candidate has an advanced degree in a subject
14 that is substantially comparable to the content assessed on a
15 subject area examination. The advanced degree shall be from an
16 institution accredited by a national or regional accrediting agency
17 which is recognized by the Secretary of the United States Department
18 of Education. The Commission shall provide the Board with the
19 necessary information to determine comparability.

20 G. 1. Nothing in the Oklahoma Teacher Preparation Act shall
21 restrict the right of the State Board of Education to issue an
22 emergency or provisional certificate, as needed. Provided, however,
23 prior to the issuance of an emergency certificate, the district
24 shall document substantial efforts to employ a teacher who holds a

1 provisional or standard certificate. In the event a district is
2 unable to hire an individual meeting this criteria, the district
3 shall document efforts to employ an individual with a provisional or
4 standard certificate in another curricular area with academic
5 preparation in the field of need. Only after these alternatives
6 have been exhausted shall the district be allowed to employ an
7 individual meeting minimum standards as established by the State
8 Board of Education for the issuance of emergency certificates.

9 2. The State Board of Education may renew the emergency or
10 provisional certificate of an individual who has been employed by a
11 school district board of education for at least two (2) years if the
12 following criteria are met:

- 13 a. the individual has been granted an emergency or
14 provisional certificate pursuant to paragraph 1 of
15 this subsection for two (2) years,
- 16 b. the individual has not successfully completed the
17 competency examinations required by this section,
- 18 c. the individual submits a portfolio of his or her work
19 to the State Board of Education, which shall include
20 evidence of progress toward standard certification,
- 21 d. the employing school district board of education
22 agrees to renew the individual's contract to teach for
23 the ensuing fiscal year, and
24

1 e. the superintendent of the employing school district
2 submits to the State Board of Education the reason the
3 emergency or provisional certificate should be renewed
4 and provides evidence of the district's inability to
5 hire a teacher who holds a standard certificate.

6 3. Individuals employed by a school district under an emergency
7 or provisional certificate shall not be considered career teachers
8 and therefore not entitled to the protections of the Teacher Due
9 Process Act of 1990.

10 H. The State Board of Education may grant an exception to the
11 requirements for all certification examinations for teacher
12 candidates who are "deaf", which for the purposes of this section
13 shall mean having a hearing loss so severe that the person cannot
14 process auditory linguistic information with or without
15 accommodation and whose primary language and teaching environment is
16 American Sign Language. The Board may grant an exception upon:

17 1. Verification by a licensed audiologist of a hearing loss so
18 severe that the teacher candidate cannot process auditory linguistic
19 information with or without accommodation;

20 2. Demonstration of fluency in American Sign Language;

21 3. Demonstration of competency in the subject area of
22 specialization as approved by the Board in lieu of certification
23 examinations; and
24

1 4. Sponsorship by a certified deaf education teacher for a
2 mentorship program.

3 The Board may promulgate rules and other requirements as
4 necessary to grant the exceptions described in this subsection.
5 Applicable teaching environments may include American Sign Language
6 immersion programs, the Oklahoma School for the Deaf, programs for
7 the deaf or other classroom settings in which American Sign Language
8 is the language of instruction.

9 SECTION 2. This act shall become effective July 1, 2025.

10 SECTION 3. It being immediately necessary for the preservation
11 of the public peace, health or safety, an emergency is hereby
12 declared to exist, by reason whereof this act shall take effect and
13 be in full force from and after its passage and approval.

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15 60-1-11251 AQH 12/28/24
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